IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-V

Item No.-514
CP(CAA) No.-24/230/232/ND/2022

IN THE MATTER OF:
Apricity Infratech Pvt. Ltd. **....Applicant**

SECTION
U/s 230-232 **Order delivered on 06.12.2022**

CORAM:
SHRI P.S.N. PRASAD,
HON'BLE MEMBER (JUDICIAL)

DR. BINOD KUMAR SINHA,
HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant	: Mr. Sachin Arora, Adv.
For the Respondent	:
For the RD	: Ms. Shankari Mishra, Ms. Niharika Tanwar, Advs.
For the IT Deptt.	: Mr. Sunil Aggarwal, Sr. St. Counsel, Mr. Tushar Gupta, Jr. St. Counsel, Mr. Parinay Gupta, Adv.

ORDER

Heard the submissions made by Ld. Counsel for the Petitioners. The reports of RD and OL are on record. Proxy Counsel for the Income Tax Department is present and submitted that due to transfer of the Assessing Officer, the reports of the 2 companies i.e. Company Nos. 1 & 4 are yet to be submitted and prayed for grant of time in this matter. 2 weeks time is granted. In the best interest of the Petitioner, Petitioner is directed to file the last 3 years of the Income Tax Returns in respect of Company Nos. 1 & 4 and also an affidavit cum undertaking from the transferee company that the tax dues, if any, in respect of Company Nos. 1 & 4 will be paid by them if claimed by the Income Tax Department as per law. List the matter on **05.01.2023.**

-Sd-
(DR. BINOD KUMAR SINHA)
MEMBER (T)

-Sd-
(P.S.N. PRASAD)
MEMBER (J)

Amit Tiwari